

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tahreem Khan	Team: Squad #11	CCRB Case #: 201907706	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Wednesday, 08/14/2019 10:23 PM, Wednesday, 08/14/2019 11:00 PM	Location of Incident: § 87(2)(b) and the 83rd Precinct station house	18 Mo. SOL 10/1/2021	Precinct: 83		
Date/Time CV Reported Thu, 08/15/2019 2:14 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/28/2019 10:53 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Ryan Kelly	22802	958747	083 PCT
2. POF Savanna Domenech	03919	960470	083 PCT
3. LSA Daniel Lacalamita	00000	935146	083 PCT
4. Officers			
5. PO Christian Romero	08122	957100	083 PCT
6. LT Ryan Pelant	00000	946099	083 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Zakie Karimzada	13358	960745	083 PCT
2. PO Daniel Atherley	01422	956399	
3. POM Luke Repalone	24553	964237	083 PCT
4. POM Alfredo Vazquez	09596	965595	083 PCT
5. POM Brandon Kron	24580	962534	083 PCT
6. POM Steven Piazza	21590	964215	083 PCT
7. POM Brenden Lavelle	20337	955045	083 PCT
8. POM David White	08712	961444	083 PCT
9. POM Leonard Disalvo	11115	963486	083 PCT
10. PO Brian Sweeney	03650	946304	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A . LSA Daniel Lacalamita	Force: At § 87(2)(b) in Brooklyn, Lieutenant Daniel Lacalamita used physical force against § 87(2)(b)	A . Exonerated

Officer(s)	Allegation	Investigator Recommendation
B . PO Ryan Kelly	Force: At § 87(2)(b) in Brooklyn, Police Officer Ryan Kelly used physical force against § 87(2)(b)	B . Exonerated
C . POF Savanna Domenech	Force: At § 87(2)(b) in Brooklyn, Police Officer Savanna Domenech used physical force against § 87(2)(b)	C . Exonerated
D . Officers	Force: At § 87(2)(b) in Brooklyn, officers used physical force against § 87(2)(b)	D . Unsubstantiated
E . LT Ryan Pelant	Discourtesy: At § 87(2)(b) in Brooklyn, Lieutenant Ryan Pelant spoke discourteously to § 87(2)(b)	E . Exonerated
F . LT Ryan Pelant	Abuse: At § 87(2)(b) in Brooklyn, Lieutenant Ryan Pelant threatened § 87(2)(b) with the use of force.	F . Substantiated
G . PO Christian Romero	Discourtesy: At the 83rd precinct station house, Police Officer Christian Romero spoke discourteously to § 87(2)(b)	G . Substantiated

Case Summary

On August 15, 2019, Captain Antonio Pagan of the Communications Division, filed a complaint with IAB (Log 2019-31117) on behalf of § 87(2)(b) which was subsequently received at the CCRB on August 28, 2019.

On August 14, 2019, at approximately 10:23 p.m., § 87(2)(b) was outside of § 87(2)(b) in Brooklyn, with some unidentified friends when he was “rushed” by Lieutenant Daniel Lacalamita, Police Officer Ryan Kelly, and Police Officer Savanna Domenech, all of the 83rd Precinct. The officers grabbed § 87(2)(b) swiped his feet from underneath him, took him to the ground, placed a knee on his back which did not restrict § 87(2)(b)'s breathing, and kicked him in the left rib area (**Allegations A – D: Force, exonerated**). Once § 87(2)(b) was placed in handcuffs and was being taken to a police vehicle, he alleged that Lieutenant Ryan Pelant, of the 83rd Precinct, stated to § 87(2)(b) “Get in the fucking car or I am going to tase you” (**Allegation E: Discourtesy, exonerated; Allegation F: Abuse of Authority, substantiated**).

Once § 87(2)(b) was transported to the 83rd Precinct station house. He was in the cell area with a few officers, when Police Officer Christian Romero, of the 83rd Precinct, told § 87(2)(b) “Going from a fucking warrant, to resisting arrest, and even worse” (**Allegation G: Discourtesy, substantiated**).

§ 87(2)(b) was charged with § 87(2)(b) because of this incident.

On November 11, 2019, NYPD Legal had provided 22 body-worn camera videos related to this incident.

Findings and Recommendations

Allegation (A) Force: At § 87(2)(b) in Brooklyn, Lieutenant Daniel Lacalamita used physical force against § 87(2)(b)

Allegation (B) Force: At § 87(2)(b) in Brooklyn, Police Officer Ryan Kelly used physical force against § 87(2)(b)

Allegation (C) Force: At § 87(2)(b) in Brooklyn, Police Officer Savanna Domenech used physical force against § 87(2)(b)

Allegation (D) Force: At § 87(2)(b) in Brooklyn, officers used physical force against § 87(2)(b)

PO Kelly's BWC footage from Investigative Action (IA) 50 (**Board Review 5**), captures non-exhaustive portions following this incident. Between the 00:30 and 01:11 marks on the media player, PO Kelly and other officers grab § 87(2)(b) by his arms and take him to the ground. The entire takedown is not visible as PO Kelly's BWC was covered possibly by § 87(2)(b)'s body and later fell to the ground. From the ground, between the 01:17 and 01:27, PO Kelly attempts to put § 87(2)(b)'s right arm behind his back for 10 seconds before § 87(2)(b) allows PO Kelly to move his arm back.

Lt. Lacalamita's BWC footage from IA 51 (**Board Review 6**) is consistent with PO Kelly's footage. The entire takedown is not visible on BWC due to the angle of the camera, which mostly was pointed at § 87(2)(b)'s shirt. Between the 00:25 and 01:01 mark on the media player of Lt. Lacalamita's second BWC from IA 52 (**Board Review 7**), Lt. Lacalamita, PO Kelly, and PO Domenech use physical force against § 87(2)(b) by grabbing his arms and when § 87(2)(b) brings his left arm to the front of his body. The officers then take him to the ground. As Lt. Lacalamita was not faced towards § 87(2)(b) during the full takedown, it did not capture the entire portion of how § 87(2)(b) ended up on the ground.

As § 87(2)(b) stood in front of § 87(2)(b) with his friends, "Q" and § 87(2)(b) and two "associates" whose names § 87(2)(b) did not know (**Board Review 1**), three officers—Lt. Lacalamita, PO Kelly, and PO Domenech—arrived in a gray unmarked sedan and approached § 87(2)(b) quickly. Without issuing § 87(2)(b) any commands or identifying themselves, the officers grabbed § 87(2)(b)'s shoulder blades. PO Kelly swiped § 87(2)(b)'s feet from underneath him and § 87(2)(b) lost balance with his knee being the first to hit the ground. The three officers then slammed § 87(2)(b) faced down to the ground and an officer placed a knee on the center of § 87(2)(b)'s back. As § 87(2)(b) could not see behind him, he did not know which officer did this. § 87(2)(b) kept asking why they were arresting him, and the officers told him to stop resisting. The officers instructed § 87(2)(b) to put his hands behind his back and to stop looking behind him. After about five to ten seconds, an officer placed § 87(2)(b)'s hands behind his back and handcuffed them. While § 87(2)(b) was on the ground, he felt two or three kicks in his left rib area by the officers, but he did not know which officers kicked him. While § 87(2)(b) did not mention his injuries in his CCRB interview, he mentioned pain to his ribs and left knee within the original IAB Log.

Lt. Lacalamita was patrolling within the confines of the 83rd Precinct with PO Domenech and PO Kelly as there were a lot of cases of Grand Larceny Auto (GLA) regarding theft of two-wheel vehicles and the officers knew that § 87(2)(b) has a probable cause I-Card issued against him (**Board Review 2**). Lt. Lacalamita was not sure what the probable cause was for § 87(2)(b)'s I-Card but noted that the group of individuals that § 87(2)(b) associated with did commit GLA. Lt. Lacalamita did not recall when he first became aware of that I-Card, nor did he recall how he obtained that information. He noted that generally the Detective Squad emails all of the officers about open I-Cards. Lt. Lacalamita clarified that he checks his email every day. In addition to email, I-Cards are also sometimes posted on a board within the command, they can be shown on a screen within the station house, and information about them can also be passed along by word of mouth. Lt. Lacalamita explained that there are three different types of I-Cards: (1) a witness I-Card where someone was a witness to a crime, (2) a suspect I-Card where there is no probable cause to make an arrest, and (3) a probable cause I-Card, which means that there is probable cause to arrest the suspect on sight. Lt. Lacalamita did not know if he took any steps to ensure that the I-Card he was referring to was still valid and the information he had was correct prior to approaching § 87(2)(b). While Lt. Lacalamita was driving by § 87(2)(b) the officers saw § 87(2)(b) on the stoop of the building with about three other people.

He did not recall who initially saw § 87(2)(b) or if there was any conversation between the officers prior to approaching § 87(2)(b). All three officers exited their vehicle and approached § 87(2)(b) to arrest him. Lt. Lacalamita did not recall how the interaction started. § 87(2)(b) resisted being placed under arrest and began yelling, which caused more people to come outside and gather around. PO Domenech and PO Kelly attempted to place § 87(2)(b) under arrest while Lt. Lacalamita was the sole officer trying to keep the crowd under control. Lt. Lacalamita did not issue § 87(2)(b) any commands at this point. He could not recall what commands PO Domenech and PO Kelly were giving § 87(2)(b) nor could he recall what § 87(2)(b) was yelling. Given that § 87(2)(b) resided in that area, people were coming out to help him. As the crowd began to grow, § 87(2)(b) was still not in handcuffs and PO Domenech and PO Kelly were physically struggling to place him under arrest. § 87(2)(b) tensed up his arms and refused to place his arms behind his back. Lt. Lacalamita did not see how PO Domenech or PO Kelly placed § 87(2)(b) under arrest. Lt. Lacalamita did not recall PO Kelly or PO Domenech using any other force against § 87(2)(b) other than that when the officers were struggling to get his hands behind his back. While Lt. Lacalamita did not recall if he assisted in the handcuffing process, he stated that he may have had a physical interaction with § 87(2)(b) briefly before focusing again on the crowd, but he did not specifically recall. Lt. Lacalamita later stated that he recalled grabbing § 87(2)(b) but he was unsure where he grabbed § 87(2)(b). He did not recall any other officer grabbing § 87(2)(b) by his shoulders. Lt. Lacalamita did not swipe § 87(2)(b)'s feet from underneath him, slam § 87(2)(b) on the ground or place a knee on § 87(2)(b)'s back. He did not observe any other officer do the acts. He did not recall himself or any other officer place any downward pressure on § 87(2)(b) while he was on the ground. Lt. Lacalamita did not kick § 87(2)(b)'s left rib area and he did not observe any other officer do so. Lt. Lacalamita did not recall any officers using any leg strikes against § 87(2)(b). Once § 87(2)(b) was placed into handcuffs, he was escorted to the unmarked vehicle. § 87(2)(b) was resisting going into this vehicle by ignoring commands from Lt. Lacalamita to go inside and was tensing up his body. At this point, Lt. Lacalamita pushed § 87(2)(b) into the vehicle. Additional officers helped Lt. Lacalamita, but he did not recall who. Lt. Lacalamita did not recall using any additional force against § 87(2)(b) other than grabbing him and pushing § 87(2)(b) into the police vehicle when he refused to inside. Once § 87(2)(b) was inside of the vehicle, he began kicking at the closed vehicle door. He was pulled out of the vehicle by multiple officers and placed in a different police vehicle with a partition, so he did not injure himself or the officers.

PO Domenech (**Board Review 3**) stated that after spotting § 87(2)(b) all three officers exited the vehicle and approached § 87(2)(b) who tried to leave by walking past the officers. PO Domenech grabbed the left side of § 87(2)(b)'s body and PO Kelly grabbed the right side. § 87(2)(b) was resisting by flailing his arms, moving his body left and right, and was clenching his arms forward, preventing PO Domenech from guiding his left arm back to place handcuffs on him. Both PO Kelly and PO Domenech were issuing § 87(2)(b) commands to put his hands behind his back. PO Kelly and PO Domenech were struggling with § 87(2)(b) for

approximately 2 minutes before PO Kelly and PO Domenech lifted § 87(2)(b) partially up off the ground and guided his body down so he was laying horizontally with his stomach to the ground. PO Domenech was able to get § 87(2)(b)'s left arm behind his back and place one handcuff on his arm. Eventually, PO Kelly was able to bring § 87(2)(b)'s right hand behind his back and had both hands placed in handcuffs. Other than this interaction, PO Domenech did not use any other force on § 87(2)(b) nor did she observe any other officer do so. PO Domenech did not swipe § 87(2)(b)'s feet from underneath him, slam § 87(2)(b) to the ground, place a knee in the center of § 87(2)(b)'s back, or kick § 87(2)(b)'s left rib area, nor did she observe any other officer do so. PO Domenech was unsure what Lt. Lacalamita was doing while she and PO Kelly attempted to arrest § 87(2)(b).

PO Kelly (**Board Review 4**) testified that he knew § 87(2)(b) through past dealings and knew that he had a Probable Cause I-Card § 87(2)(b). PO Kelly found out about § 87(2)(b)'s I-Card a few days prior to this incident and noted that § 87(2)(b) is § 87(2)(b). Generally, PO Kelly would search on the computer each day to see which I-Cards were active. He sometimes also becomes aware of active I-Cards through word-of-mouth by his Lieutenant. However, he did not specifically remember how he became aware of § 87(2)(b)'s I-Card. PO Kelly did not recall if he took any specific actions on the incident date to verify the existence of § 87(2)(b)'s I-Card. PO Kelly saw § 87(2)(b) on the stoop of § 87(2)(b) and believed that § 87(2)(b) may have seen the officers, which is when he started to go up some steps on the of the building. On that stoop, there were approximately four other people with § 87(2)(b). Without further conversation, all the officers exited the vehicle and went towards § 87(2)(b). PO Kelly stated "Police!" and went to grab § 87(2)(b) to place him under arrest. PO Kelly told § 87(2)(b) to put his hands behind his back. § 87(2)(b) asked why he was being arrested again and PO Kelly told him for stealing a car. PO Domenech assisted PO Kelly with § 87(2)(b). At this point, some people who were also near the stoop began to curse at the officers. As § 87(2)(b) continued to resist arrest, PO Kelly took § 87(2)(b) to the ground using a leg-sweep maneuver, by grabbing § 87(2)(b) putting his leg in front of § 87(2)(b)'s legs, and then moving both his leg and § 87(2)(b)'s body so that § 87(2)(b)'s body would fall to the side over PO Kelly's leg. During this takedown is when his body camera got knocked off his person. PO Kelly continued to struggle with § 87(2)(b) who was stomach-down on the ground, continued to pull his hands towards the front of his body, away from PO Kelly. PO Kelly did not need to use any force on § 87(2)(b) at this point, other than trying to put § 87(2)(b)'s hands behind his back. Shortly after, PO Kelly was able to handcuff § 87(2)(b). PO Kelly did not put a knee on § 87(2)(b)'s back or kick § 87(2)(b) in his left rib area during this incident, nor did he observe any other officer do so.

Three Threat, Resistance, Injury (TRI) reports and one Threat, Resistance, Injury Investigating Supervisor's Assessment Report (ISAR) were prepared for this incident.

TRI Report § 87(2)(b) (**Board Review 26**) was completed by PO Kelly, who noted that force, specifically pushing and shoving, was used against him by § 87(2)(b). PO Kelly did not sustain any injuries. The report further noted that PO Kelly did need to use force

against § 87(2)(b) by using a forcible takedown in defense of himself, in defense of a member of the public, in defense of other officer, to overcome resistance or aggression, and against a fleeing suspect. The report notes that § 87(2)(b) was offered medical attention and he refused it.

TRI Report #§ 87(2)(b) (**Board Review 27**) was completed by Lt. Lacalamita, who noted that force, specifically wrestling, grappling, pushing, and shoving, were used against him by § 87(2)(b). Lt. Lacalamita did not sustain any injuries. The report further noted that Lt. Lacalamita did need to use force against § 87(2)(b) by using a forcible takedown and knee strike in defense of himself, in defense of other officer, to overcome resistance or aggression, and against a fleeing suspect. According to the report, § 87(2)(b) was offered medical attention, accepted it, was treated by EMS, and was removed to the hospital. § 87(2)(b) suffered minor contusions as a result of intentional action taken by officers.

TRI Report #§ 87(2)(b) (**Board Review 28**) was completed by PO Kelly. His second report was consistent with the first, except for the Civilian/Subject Injury section. PO Kelly amended the report to note that § 87(2)(b) was offered medical attention, he accepted it, was treated by EMS, and was removed to the hospital. § 87(2)(b) had minor contusions.

ISAR #§ 87(2)(b) (**Board Review 21**) indicated that Captain Antonio Pagan, of the 83rd Precinct, filled out this report indicating that § 87(2)(b) suffered from § 87(2)(b). § 87(2)(b) was transported to § 87(2)(b).

Investigation Card #§ 87(2)(b) (**Board Review 23**) notes that the Probable Cause (PC) to Arrest Investigation Card (I-Card) was created on August 12, 2019, by Detective Andrew Ottaka, two days prior to this incident, and was cancelled on August 15, 2019, the day after § 87(2)(b) was arrested. The PC I-Card was active on the date of the incident: August 14, 2019 and was for § 87(2)(b). The I-Card included a photograph of § 87(2)(b).

Arrest Report #§ 87(2)(b) (**Board Review 25**) indicates that § 87(2)(b) was arrested due to the I-Card noted above.

Officers may use force when it is reasonable for the protection of an officer or of other individuals present. NYPD Patrol Guide Procedure 221-01 (**Board Review 11**).

An officer may use physical force to make an arrest or prevent the individual from escaping if they have either committed or attempted to commit a felony NYS Penal Law § 35.30 (**Board Review 22**).

According both PO Kelly and Lt. Lacalamita's BWC, § 87(2)(b) is seen resisting arrest by physically preventing his arms from going behind his back. When his arms did go behind his back, § 87(2)(b) brought his arms back to the front of his body, which is when the officers took § 87(2)(b) to the ground. § 87(2)(b) stated that he was standing outside of § 87(2)(b) when the officers grabbed him and swiped his feet underneath him. While § 87(2)(b) did not explicitly state that he was resisting the officers' actions, he recalled officers telling him to stop resisting after he was taken to the ground. Lt. Lacalamita recalled § 87(2)(b) resisting arrest by tensing his arms and not putting them behind his back, and yelling, causing a

crowd to gather. PO Domenech stated that § 87(2)(b) tried to walk away from the officers when they approached him. After that, § 87(2)(b) flailed his arms and moved his body from left to right, preventing officers from getting ahold of § 87(2)(b)'s arms to place him in handcuffs. PO Kelly noted that § 87(2)(b) pulled his arms towards the front of his body, preventing PO Kelly from being able to handcuff him.

§ 87(2)(g)

It is therefore recommended that **Allegations A – D** be closed as exonerated.

Allegation (E) Discourtesy: At § 87(2)(b) in Brooklyn, Lieutenant Ryan Pelant spoke discourteously to § 87(2)(b)

Allegation (F) Abuse of Authority: At § 87(2)(b) in Brooklyn, Lieutenant Ryan Pelant threatened § 87(2)(b) with the use of force.

These allegations were captured on PO Luke Repalone's BWC, located in IA 60 (**Board Review 17**). At the 00:49 mark in the media player, Lt. Pelant approaches the unmarked police vehicle where officers are with § 87(2)(b). At 00:52, it appears that Lt. Pelant takes his taser out of its holster. Neither Lt. Pelant nor § 87(2)(b) are visible until the 01:00 mark in the media player, where Lt. Pelant points a taser at § 87(2)(b) and yells, "I'll fucking tase you right now. I'll tase you right now." At this time, § 87(2)(b) is held by two officers and is surrounded by at least four officers. § 87(2)(b) is yelling, "He's pulling me! He's pulling me!"

PO Daniel Atherley's BWC, located in IA 58, (**Board Review 18**) shows a different angle of the same portion of this incident. Between the 01:28 to the 01:38 marks on the media player, officers took § 87(2)(b) out of a police vehicle. § 87(2)(b) starts moving his body forward, away from the officers as he yells, "Yo my nigga! Ya'll niggas is fucking violating!" There appears to be a physical struggle as there is a lot of movement and Lt. Lacalamita comes to grab § 87(2)(b) as well. Lt. Pelant's voice is heard telling § 87(2)(b) "I will fucking tase you right now." At the 01:39 mark, Lt. Lacalamita told § 87(2)(b) to "stop fucking kicking." In the background another officer tells § 87(2)(b) to calm down.

Lt. Pelant's BWC, located in IA 63, (**Board Review 24**), shows two officers at the 00:42 mark, escort § 87(2)(b) to another police vehicle. The officers grab each of § 87(2)(b)'s arms. § 87(2)(b) is handcuffed and says "Fuck that" while Lt. Pelant walks with the two officers. At the 00:58 mark, Lt. Pelant told § 87(2)(b) "I'll tase you right now. Stop. It's over." § 87(2)(b) then says, "But what the fuck am I getting locked up for." Lt. Pelant repeats, "It's over" and another officer states, "You have a warrant."

§ 87(2)(b) (**Board Review 1**) stated that once he was handcuffed and escorted to the unmarked police vehicle, an officer stood about one arm's distance away from § 87(2)(b) and pointed a taser at his chest, which was about half of an arm's length away. The unknown uniformed officer told § 87(2)(b) a few times to "get in the fucking car or I am going to tase

you.” § 87(2)(b) provided the following description for the subject officer: Male, White, 5’9” or 5’10” tall, had a white beard, had salt and pepper hair, and wore a white shirt. This officer was not of the initial three officers who arrived.

Lt. Pelant (**Board Review 14**), who was dressed in uniform on this day, heard a request for assistance over the radio and responded with his partner, PO Brian Sweeney. He saw § 87(2)(b) inside of an unmarked police vehicle. Both back-passenger doors were open and there was one officer on each side of § 87(2)(b). Both officers were partially inside of the vehicle and appeared to struggle with § 87(2)(b). Lt. Pelant did not recall who told him this information, but he was informed that § 87(2)(b) was kicking from inside of the vehicle. He did not make this observation himself. As the unmarked vehicle did not have a partition, § 87(2)(b) was taken out of the unmarked vehicle and taken to a vehicle that had a partition before he was transported to the stationhouse. Lt. Pelant did not see how § 87(2)(b) was taken out of that vehicle. During this time, a crowd of approximately 10 – 15 people was forming. Members of the crowd were screaming, yelling, cursing, and getting in the officers’ faces, which indicated to Lt. Pelant that the crowd was hostile. Lt. Pelant did not recall pointing a taser at § 87(2)(b) and stating, “I’ll fucking tase you right now, I’ll tase you right now.” As § 87(2)(b) was transported to the vehicle with a partition by two officers, Lt. Pelant walked close to these officers. He saw that § 87(2)(b) was pulling away from the officers by pivoting his shoulder away from the officers, indicating that he may be a potential escape risk. Lt. Pelant did not note the exact moment he unholstered his taser but recalled that his taser was unholstered when he walked close to these officers. He stated that he had his taser out as § 87(2)(b) was being combative with the officers by not listening to directions, and resisting by kicking inside of the police vehicle, which led Lt. Pelant to believe that § 87(2)(b) was a risk to the officer’s safety. Lt. Pelant told § 87(2)(b) “I’ll tase you, it’s over.” Lt. Pelant did not know which direction his taser was pointed but noted that it was on once it was unholstered. After reviewing PO Repalone’s BWC (**Board Review 17**), Lt. Pelant identified himself as the officer in the white uniform shirt at the 01:10 mark and identified Lt. Lacalamita in a white t-shirt. Lt. Pelant stated that he had a taser in his hand but did not independently recall having his taser out at this portion of the incident. He stated that he may have had his taser out because § 87(2)(b) was resisting and was not complying with the officer’s commands. He did not hear himself make any statements during this clip. Lt. Pelant reviewed the video between 01:00 and 01:04. He heard someone state, “I’ll fucking tase you right now. I’ll tase you right now,” but could not identify who said it.

PO Domenech (**Board Reviews 3 – 4**), Lt. Lacalamita (**Board Review 2**), PO Kelly (**Board Review 4**), PO Daniel Atherley (**Board Review 15**), PO Sweeney (**Board Review 16**), and PO Romero (**Board Review 12**) were all interviewed about these allegations. None of these officers recalled any officer in a white shirt point a taser at § 87(2)(b) at state, “Get in the fucking car or I am going to tase you.” Due to the distance of the camera, quality of the video, and sound dubbing over Microsoft Teams, none of the officers were able to identify the officer in

the white shirt in PO Repalone's BWC or identify the voice that stated, "I'll fucking tase you right now. I'll tase you right now."

Officers should treat every citizen with courtesy, professionalism, and respect as per NYPD Patrol Guide Procedure 200-02 (Board Review 8).

The use of discourteous language by an officer may be justified when attempting to gain compliance with commands given while attempting to maintain order during a stressful street encounter NYPD Disciplinary Case #79627/04 (**Board Review 10**).

All members of service at a police incident may use reasonable force, employ less lethal alternatives, and prioritize de-escalation, whenever possible. If the force is used is unreasonable under the circumstances, it will be deemed excessive and in violation of Department policy, which will not be tolerated. No level of force should be used on a handcuffed or otherwise restrained subject, unless necessary to prevent injury, escape, or overcome active physical resistance or assault NYPD Patrol Guide Procedure 221-01 (Board Review 11).

Officers should only use Conducted Electrical Weapon (CEW) against individuals who are actively resisting, exhibiting aggressive behavior, or pose a threat to themselves or others. A CEW is classified as a less lethal device and is intended to augment and provide a greater margin of safety for officers who might otherwise be forced to physically subdue a dangerous subject. The following must be taken into account when using CEWs: the nature and severity of the crime and circumstance; actions taken by the subject and the duration of those actions; immediacy of the perceived threat of harm to the subject, members of service, or bystanders; whether the subject is actively resisting, attempting to evade custody, or is attempting to flee from police custody; the number of subjects in comparison to officers; the appearance of the subject; and if the subject has a known violent history. It is prohibited to use a CEW in situations that do not require the use of physical force. NYPD Patrol Guide Procedure 221-08 (Board Review 9).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **exonerated**.

There is no dispute that prior to Lt. Pelant's arrival, § 87(2)(b) was actively resisting being transported to a police facility by kicking the rear door of the unmarked police vehicle in which he had been placed. However, by the time Lt. Pelant arrived on scene, § 87(2)(b) was rear-cuffed and was being pulled out of the backseat of the unmarked vehicle by two officers who held § 87(2)(b) by his upper arms. Within three seconds of his arrival, Lt. Pelant is seen on video drawing his taser and within 10 seconds, he is seen pointing his taser at § 87(2)(b) while threatening to tase him. Once § 87(2)(b) is pulled out of the vehicle, he is observed yelling, "He's pulling me. He's pulling me," but he is not seen physically resisting.

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation F** be closed as **substantiated**.

Allegation (G) Discourtesy: At the 83rd precinct station house, Police Officer Christian Romero spoke discourteously to § 87(2)(b)

PO Kelly's BWC, located in IA 69 (**Board Review 13**) shows officers and § 87(2)(b) in the holding cell area of the 83rd Precinct. Between the 01:20 and 02:00 marks, officers attempt to have § 87(2)(b) remove items that he was not permitted to have within the cells and § 87(2)(b) is not complying with the officers. At the 02:17 mark, an unidentified officer states, "go from a warrant to fucking resisting arrest, and then even worse" to § 87(2)(b).

PO Christian Romero (**Board Review 12**) initially did not recall interacting with § 87(2)(b) at the 83rd Precinct station house or making the statement, "Going from a warrant, to fucking resisting arrest, and then even worse." After reviewing PO Kelly's BWC (**Board Review 13**), PO Romero heard himself state, "Going from a warrant, to fucking resisting arrest, and then even worse" to § 87(2)(b). He stated he made that statement because § 87(2)(b) was being arrested for a warrant and was being uncooperative. The purpose of that statement was to remind

§ 87(2)(b) that it was just a warrant and that there was no need to make the matter worse by attacking any of the officers. PO Romero used the word “fucking” as it just came out in the heat of the moment. There was no additional reason for PO Romero stating that.

Officers should treat every citizen with courtesy, professionalism, and respect as per NYPD Patrol Guide Procedure 200-02 (**Board Review 8**).

The use of discourteous language by an officer may be justified when attempting to gain compliance with commands given while attempting to maintain order during a stressful street encounter NYPD Disciplinary Case #79627/04 (**Board Review 10**).

§ 87(2)(g)

It is recommended that **Allegation G** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- Lt. Pelant has been a member of service for 14 years and has been a subject in seven other CCRB complaints and 16 other allegations, none of which were substantiated. § 87(2)(g)
- PO Kelly has been a member of service for six years and has been a subject in six other CCRB complaints and nine other allegations, none of which were substantiated. § 87(2)(g)
- PO Domenech has been a member-of-service for six and this is the first CCRB complaint to which she has been a subject.
- Lt. Lacalamita has been a member of service for 17 years and has been a subject in seven other CCRB complaints and 12 other allegations, none of which were substantiated. § 87(2)(g)
- PO Romero has been a member of service for seven years and has been a subject in three other CCRB complaints and seven other allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of May 28, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (**Board Review 19**).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: 11

Investigator: Tahreem Khan Inv. Tahreem Khan January 20, 2022
Signature Print Title & Name Date

Squad Leader: Edwin Pena IM Edwin Pena 01/21/22
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date